

AWARD/CONTRACT		1. This Contract Is A Rated Order Under DPAS (15 CFR 700)		Rating DOA2	Page 1 Of 60 Pages		
2. Contract (Proc. Inst. Ident.) No. SPRRA2-26-D-0008		3. Effective Date		4. Requisition/Purchase Request/Project No. SEE SCHEDULE			
5. Issued By DEFENSE LOGISTICS AGENCY JASIKA WILLIAMS 5201 MARTIN ROAD/DLA-AVN-AH REDSTONE ARSENAL AL 35898-7340		Code SPRRA2	6. Administered By (If Other Than Item 5) DCMA GREAT LAKES 1523 WEST CENTRAL ROAD BLDG 203 ARLINGTON HEIGHTS IL 60005-2451			Code S1403A	
e-mail address: JASIKA.WILLIAMS@DLA.MIL							
7. Name And Address Of Contractor (No., Street, City, County, State and Zip Code) FEDERAL PRISON INDUSTRIES, INC 4500 PRISON RD MARION, IL 62959-9011				8. Delivery ☐ FOB Origin ☒ Other (See Below)			
				9. Discount For Prompt Payment			
				10. Submit Invoices (4 Copies Unless Otherwise Specified)  Item 12			
Code 4W2T2		Facility Code		To The Address Shown In:			
11. Ship To/Mark For SEE SCHEDULE		Code	12. Payment Will Be Made By DFAS - COLUMBUS CENTER WEST ENTITLEMENT OPERATIONS P O BOX 182381 COLUMBUS OH 43218-2381			Code HQ0339	
13. Authority For Using Other Than Full And Open Competition: ☒ 10 U.S.C. 2304(c)(1) ☐ 41 U.S.C. 253(c)()			14. Accounting And Appropriation Data				
15A. Item No. SEE SCHEDULE		15B. Supplies/Services		15C. Quantity	15D. Unit	15E. Unit Price	15F. Amount
15G. Total Amount Of Contract →						\$0.00	
16. Table Of Contents							
(X)	Sec.	Description	Page(s)	(X)	Sec.	Description	Page(s)
Part I - The Schedule				Part II - Contract Clauses			
X	A	Solicitation/Contract Form	1	X	I	Contract Clauses	43
X	B	Supplies or Services and Prices/Costs	5	Part III - List Of Documents, Exhibits, And Other Attachments			
	C	Description/Specs./Work Statement			J	List of Attachments	
	D	Packaging and Marking		Part IV - Representations And Instructions			
X	E	Inspection and Acceptance	28		K	Representations, Certifications, and Other Statements of Offerors	
X	F	Deliveries or Performance	29		L	Instrs., Conds., and Notices to Offerors	
X	G	Contract Administration Data	36		M	Evaluation Factors for Award	
X	H	Special Contract Requirements	38				
Contracting Officer Will Complete Item 17 (Sealed-Bid or Negotiated Procurement) Or 18 (Sealed-Bid Procurement) As Applicable							
17. ☒ Contractor's Negotiated Agreement (Contractor is required to sign this document and return 2 signed copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all the services set forth or otherwise identified above and on any continuation sheets for the consideration stated herein. The rights and obligations of the parties to this contract shall be subject to and governed by the following documents: (a) this award/contract, (b) the solicitation, if any, and (c) such provisions, representations, certifications, and specifications, as are attached or incorporated by reference herein. (Attachments are listed herein.)				18. ☐ Sealed-Bid Award (Contractor is not required to sign this document.) Your bid on Solicitation Number _____, including the additions or changes made by you which additions or changes are set forth in full above, is hereby accepted as to the items listed above and on any continuation sheets. This award consummates the contract which consists of the following documents: (a) the Government's solicitation and your bid, and (b) this award/contract. No further contractual document is necessary. (Block 18 should be checked only when awarding a sealed-bid contract.)			
19A. Name And Title Of Signer (Type Or Print) CID OVANDO, PROGRAM MANAGER				20A. Name Of Contracting Officer THOMPSON.NICOLE.SH NICOLE S. THOMPSON NICOLE.THOMPSON@DLA.MIL (256) 341-8341			
19B. Name of Contractor By <u>CID OVANDO</u> (Signature of person authorized to sign)				20B. United States Of America By _____ (Signature of Contracting Officer)			
19c. Date Signed Digitally signed by CID OVANDO Date: 2026.01.16 09:55:32 -05'00'				20C. Date Signed Digitally signed by THOMPSON.NICOLE.SHAVONNE.1105407412 Date: 2026.01.21 08:58:35 -06'00'			

AWARD/CONTRACT		1. This Contract Is A Rated Order Under DPAS (15 CFR 700)		Rating DOA2		Page 1 Of 60	
2. Contract (Proc. Inst. Ident.) No. SPRA2-26-D-0008		3. Effective Date 2026JAN21		4. Requisition/Purchase Request/Project No. SEE SCHEDULE			
5. Issued By DEFENSE LOGISTICS AGENCY JASIKA WILLIAMS 5201 MARTIN ROAD/DLA-AVN-AH REDSTONE ARSENAL AL 35898-7340		Code SPRRA2		6. Administered By (If Other Than Item 5) DCMA GREAT LAKES 1523 WEST CENTRAL ROAD BLDG 203 ARLINGTON HEIGHTS IL 60005-2451		Code S1403A	
e-mail address: JASIKA.WILLIAMS@DLA.MIL							
7. Name And Address Of Contractor (No., Street, City, County, State and Zip Code) FEDERAL PRISON INDUSTRIES, INC 4500 PRISON RD MARION, IL 62959-9011				8. Delivery ☐ FOB Origin ☒ Other (See Below)			
				9. Discount For Prompt Payment			
				10. Submit Invoices (4 Copies Unless Otherwise Specified)			Item 12
Code 4W2T2		Facility Code		To The Address Shown In:			
11. Ship To/Mark For SEE SCHEDULE		Code		12. Payment Will Be Made By DFAS - COLUMBUS CENTER WEST ENTITLEMENT OPERATIONS P O BOX 182381 COLUMBUS OH 43218-2381		Code HQ0339	
13. Authority For Using Other Than Full And Open Competition: ☒ 10 U.S.C. 2304(c)(1) ☐ 41 U.S.C. 253(c)()				14. Accounting And Appropriation Data			
15A. Item No. SEE SCHEDULE		15B. Supplies/Services		15C. Quantity	15D. Unit	15E. Unit Price	15F. Amount
15G. Total Amount Of Contract →						\$0.00	
16. Table Of Contents							
(X)	Sec.	Description	Page(s)	(X)	Sec.	Description	Page(s)
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	C	Description/Specs./Work Statement			J	List of Attachments	
	D	Packaging and Marking		Part IV - Representations And Instructions			
X	E	Inspection and Acceptance	28		K	Representations, Certifications, and Other Statements of Offerors	
X	F	Deliveries or Performance	29		L	Instrs., Conds., and Notices to Offerors	
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X	H	Special Contract Requirements	38				
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19A. Name And Title Of Signer (Type Or Print)				20A. Name Of Contracting Officer NICOLE S. THOMPSON NICOLE.THOMPSON@DLA.MIL (256)341-8341			
19B. Name of Contractor		19c. Date Signed		20B. United States Of America		20C. Date Signed	
By _____ (Signature of person authorized to sign)				By _____ /SIGNED/ (Signature of Contracting Officer)		2026JAN21	

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 2 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

SECTION A - SUPPLEMENTAL INFORMATION

Buyer Name: JASIKA WILLIAMS
 Buyer Office Symbol/Telephone Number: DLA-AVN-AHD/(256)201-7563
 Type of Contract 1: Firm Fixed Price
 Kind of Contract: Supply Contracts and Priced Orders
 Type of Business: Other Nonprofit
 Surveillance Criticality Designator: B
 Contract Expiration Date: 2031JAN21

*** End of Narrative A0000 ***

A-1. THIS REQUIREMENT IS AWARDED TO FEDERAL PRISON INDUSTRIES, INC (FPI)/ UNICOR (CAGE 4W2T2), AW 10 U.S.C. 3204(a)(5) and FAR 6.302-5(b)(1).

A-2. THIS REQUIREMENT IS IN SUPPORT OF THE WEAPON SYSTEM: M-DP AVENGER.

A-3. FLIGHT SAFETY/CRITICAL SAFETY ITEM (CSI) IS NOT REQUIRED.

A-4. PRODUCTION LOT TESTING IS REQUIRED.

QTY: ALL TEST DAYS: 50 GOVT REVIEW DAYS: 10

A-5. FAT ARTICLE IS NOT REQUIRED.

A-6. SNRR MARKINGS ARE NOT REQUIRED.

A-7. TAMMS-A MARKINGS ARE NOT REQUIRED.

A-8. IUID MARKINGS ARE REQUIRED FOR NSN: 6150-01-347-7837.

A-9. RFID MARKINGS ARE NOT REQUIRED.

A-10. EXPORT CONTROL NOT APPLICABLE.

A-11. SERIAL NUMBERING IS NOT REQUIRED.

A-12. FIT CHECK IS NOT REQUIRED.

A-13. THIS IS A 5 YEAR INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ), FIRM FIXED PRICE (FFP)EFFORT FOR THE FOLLOWING:
 NSN: 6150-01-476-2330 , P/N: 13502852 , NOUN: CABLE ASSEMBLY,SPEC
 NSN: 6150-01-476-2331 , P/N: 13502511 , NOUN: CABLE ASSEMBLY,SPEC
 NSN: 6150-01-347-7837 , P/N: 13264852 , NOUN: CABLE ASSEMBLY,SPEC
 NSN: 6150-01-476-2332 , P/N: 13502512 , NOUN: CABLE ASSEMBLY,SPEC

A-14. CONTRACTOR POINT OF CONTACT INFORMATION:
 NAME: CID OVANDO
 TELEPHONE NUMBER: (202)941-6204
 E-MAIL ADDRESS: COVANDO@CENTRAL.UNICOR.GOV

A-15. DCMA ACO POINT OF CONTACT INFORMATION:
 NAME: JON D. CARTER
 TELEPHONE NUMBER: (314)669-0154
 E-MAIL ADDRESS: JONATHAN.D.CARTER7.CIV@MAIL.MIL

A-16. CONTRACT SPECIALIST POINT OF CONTACT INFORMATION:
 NAME: JASIKA WILLIAMS
 OFFICE SYMBOL: DLA-AVN-AHD
 TELEPHONE NUMBER: 256-201-7563
 E-MAIL ADDRESS: JASIKA.WILLIAMS@DLA.MIL

A-17. FUNDS WILL BE OBLIGATED/CITED UPON ISSUANCE OF EACH DELIVERY ORDER.

A-18. ACCELERATED DELIVERY IS ENCOURAGED AND AUTHORIZED AT NO ADDITIONAL COST TO THE GOVERNMENT

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 3 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

A-19. Defense Priority and Allocations System (DPAS)

This is a DO DPAS rated order, and you are required to notify DLA within 15 days of receipt of order if the rated order cannot be fulfilled as written. This includes conflicting rated order schedules. If no response is received during the required response time, the contractor self-attests order acceptance as is.

A-20. CONTRACTORS USING THE PROPRICER SYSTEM:

The original unedited ProPricer system generated Excel file is hereby requested. In Excel Workbook format (.xlsx) provide a ProPricer system generated Detail Cost Breakdown report, with Export Full Pricing set to Annual. This Excel file shall be a full working cost model containing the original columns, formulas, and worksheets only. Do not modify the ProPricer system generated Excel file in any manner. Excel tabs to include:

- 1) P-Sheet (needed at minimum)
- 2) Direct Rates
- 3) Indirect Rates
- 4) CERs (if applicable)
- 5) CER Factors (if applicable)

A-21. Long Lead Time and or Long Term Contracts

FOR LONG LEAD TIME ITEMS AND/OR LONG TERM CONTRACTS, THE PARTIES RECOGNIZE THERE IS A RISK THAT PART(S) OR COMPONENT(S) REQUIRED FOR PERFORMANCE OF THE CONTRACT/PURCHASE ORDER MAY BECOME UNAVAILABLE DUE TO OBSOLESCENCE. UPON RECEIPT OF THE CONTRACT/PURCHASE ORDER, CONTRACTOR IS RESPONSIBLE FOR VERIFYING ITS SOURCES OF SUPPLY. IF AT ANY TIME DURING THE COURSE OF PERFORMANCE CONTRACTOR BECOMES AWARE THAT IT IS UNABLE TO PROCURE A PART OR COMPONENT NECESSARY TO FULFILL THE REQUIREMENTS OF THE CONTRACT, THE CONTRACTOR SHALL NOTIFY THE CONTRACTING OFFICER IN WRITING WITHIN THIRTY DAYS. NOTIFICATION SHALL INCLUDE CONTRACTORS RECOMMENDATION FOR CORRECTION OF THE PROBLEM, IF POSSIBLE, WITH ESTIMATED COST AND SCHEDULE IMPACT, IF ANY. THE CONTRACTING OFFICER WILL DETERMINE THE APPROPRIATE COURSE OF ACTION AND PROVIDE DIRECTION TO THE CONTRACTOR. IN NO EVENT WILL CONTRACTOR PROCEED WITH IMPLEMENTATION OF ITS RECOMMENDATION WITHOUT WRITTEN DIRECTION FROM THE CONTRACTING OFFICER. AT THE SOLE DISCRETION OF THE CONTRACTING OFFICER, THE CONTRACT MAY BE TERMINATED IN WHOLE OR IN PART, AS APPROPRIATE.

A-22. Product Quality Deficiency Reports (PQDRs)

The Product Quality Deficiency Report Program (Army Regulation 702-7) will be used when contractors: 1) deliver deficient items or 2) receive deficient items from a DoD supply chain in support of Army requirements. When requested, the Contractor shall assist the cognizant Contract Administration Office in evaluating PQDRs and exhibits for defects reported on items manufactured under this contract to determine the root cause for deficiencies. Corrective action and Preventative Action to preclude recurrence of discrepancies shall be an integral part of the Contractors Quality Program. These defects may be reported from any DoD activity that discovers a defective item.

A-23. NOTICE: YOUR ATTENTION IS INVITED TO FEDERAL ACQUISITION REGULATION (FAR) 15.403-3, RELATIVE TO THE REQUIREMENTS FOR OBTAINING OTHER THAN CERTIFIED COST OR PRICING DATA. YOU ARE REQUIRED TO SUBMIT OTHER THAN COST OR PRICING DATA, IF REQUESTED. OFFEROR MAY USE THEIR OWN FORMAT TO PROVIDE, AT A MINIMUM, A BREAKDOWN OF ALL THE COST ELEMENTS TO INCLUDE PROFIT/FEE WHICH COMPRISE THE TOTAL PROPOSED PRICE OR SALES HISTORY. FAILURE TO PROVIDE OTHER THAN COST OR PRICING DATA IF REQUESTED WILL RESULT IN YOUR OFFER BEING CONSIDERED NON-RESPONSIVE.

A-24. FOR ALL POST AWARD INQUIRIES, PLEASE CONTACT: DLAHSVMSLPOSTAWARD@DLA.MIL

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 4 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

*** END OF NARRATIVE A0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 5 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS THIS IS A FIVE (5) YEAR INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ) CONTRACT NUMBER: SPRRA2-26-D-0008. FUNDS WILL BE OBLIGATED/CITED UPON THE ISSUANCE OF EACH DELIVERY ORDER. THE GOVERNMENT WILL ONLY BE OBLIGATED TO ORDER THE STATED MINIMUM QUANTITY. THE GOVERNMENT IS NOT OBLIGATED TO ISSUE ANY ADDITIONAL ORDERS AGAINST THIS CONTRACT; HOWEVER, THE GOVERNMENT RESERVES THE RIGHT TO ORDER UP TO THE MAXIMUM QUANTITY OF 300 FOR NSN 6150-01-476-2330, 572 FOR NSN 6150-01-476-2331, 130 FOR NSN 6150-01-347-7837, AND 404 FOR NSN 6150-01-476-2332. THE GOVERNMENT HAS SEGREGATED THE POTENTIAL QUANTITIES INTO FIVE (5) ORDERING PERIODS. HOWEVER, THIS DOES NOT PRECLUDE EXERCISING ITS RIGHTS UNDER FAR 52.216-19 BY ORDERING THE MAXIMUM QUANTITY SPECIFIED IN FAR 52.216-19(b)(1) AT ANY TIME DURING THE INDEFINITE QUANTITY PERIOD. THE GOVERNMENT INTENDS TO AWARD ONLY ONE BASIC INDEFINITE DELIVERY INDEFINITE QUANTITY CONTRACT AS A RESULT OF THIS CONTRACT. THE GOVERNMENT'S MINIMUM QUANTITY TO BE AWARDED SIMULTANEOUSLY WITH THE AWARD OF THE BASIC CONTRACT IS 110 (CLIN 0001AA), 332 (CLIN 0002AA), 70 (CLIN 0003AA), 224 (CLIN 0004AA) EACH. THE GOVERNMENT'S MAXIMUM QUANTITY DURING THE INDEFINITE QUANTITY PERIOD IS 300 FOR NSN 6150-01-476-2330, 572 FOR NSN 6150-01-476-2331, 130 FOR NSN 6150-01-347-7837, AND 404 FOR NSN 6150-01-476-2332 EACH. PRICES QUOTED FOR EACH ORDERING PERIOD WILL BE VALID FOR ALL QUANTITIES ORDERED DURING THAT ORDERING PERIOD. THE CONTRACT IS FOR THE SUPPLIES AS DETAILED ON THE FOLLOWING PAGES. OFFERORS ARE CAUTIONED TO ENSURE THAT OFFERS ARE PROVIDED ON ALL QUANTITIES. FAILURE TO PROPOSE ALL CLINS, WILL RESULT IN A DETERMINATION OF NON-RESPONSIVENESS. YEAR 1 WILL BE FROM DATE OF AWARD THROUGH 365 DAYS AFTER CONTRACT AWARD (DACA). YEAR 2 WILL BEGIN 366 DACA AND END 730 (DACA). YEAR 3 WILL BEGIN 731 DACA AND END 1,095(DACA). YEAR 4 WILL BEGIN 1,096 DACA AND END 1,461(DACA). YEAR 5 WILL BEGIN 1,462 DACA AND END 1,826(DACA). THE CONTRACTOR SHALL PROVIDE UNIT PRICES FOR EACH CLIN ABOVE. OFFEROR IS CAUTIONED TO ENSURE THAT AN OFFER IS				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 6 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	PROVIDED ON ALL QUANTITIES FOR ALL CLINS. THE CONTRACTOR SHALL PROVIDE UNIT PRICES FOR EACH OF THE RANGES REFLECTED BELOW ON THE FOLLOWING PAGES. SEE SECTION H (H0002) FOR ORDERING LIMITATIONS APPLICABLE TO CERTAIN CLINS. (End of narrative A001) CABLE ASSEMBLY, SPEC NSN: 6150-01-476-2330 Mfr CAGE: 18876 Mfr Part Number: 13502852				
0001AA	<u>PLT - PRODUCTION QUANTITY YEAR 1</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [2.5 LBS] LN [8.5 IN] WD [8.5 IN] DP [4.3 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [EB] JV/CD [LC] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [Q] JX/SM [00]	110 (E)	EA	\$ 2,060.74000	

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD			Page 7 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001AB	JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 280 DAYS RECEIPT OF ORDER. 				

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001AC	JIX/A/PK [Q] JX/SM [00] JVIIIA/OPI [M]				
	DELIVERIES SHALL COMMENCE 280 DAYS RECEIPT OF ORDER.				
	(End of narrative D001)				
	Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				
	PLT - PRODUCTION QUANTITY YEAR 3	48 (E)	EA	\$ 2,210.00000	
	COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 Packaging and Marking PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [2.5 LBS] LN [8.5 IN] WD [8.5 IN] DP [4.3 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [EB] JV/CD [LC] JVI/CT [A] JVII/UC [ED]				

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIINMOD/AMD			Page9 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001AD	JVII/IC [00] JIX/A/PK [Q] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 280 DAYS RECEIPT OF ORDER. <				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 10 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001AE	JVII/UC [ED] JVII/IC [00] JIX/A/PK [Q] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 280 DAYS RECEIPT OF ORDER. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination <u>PLT - PRODUCTION QUANTITY YEAR 5</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [2.5 LBS] LN [8.5 IN] WD [8.5 IN] DP [4.3 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [EB] JV/CD [LC]	47 (E)	EA	\$ 2,436.53000	

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIINMOD/AMD			Page 11 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [Q] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 280 DAYS RECEIPT OF ORDER. 				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 12 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL PACKAGING INSTRUCTIONS: COIL CABLE, CAP/CUSHION CONNECTORS. DELIVERIES SHALL COMMENCE 290 DAYS RECEIPT OF ORDER. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				
0002AB	<u>PLT - PRODUCTION QUANTITY YEAR 2</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND	60 (E)	EA	\$ 275.51000	

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	SIZE (INCHES) WT [5.0 LBS] LN [12.3 IN] WD [12.3 IN] DP [4.3 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL PACKAGING INSTRUCTIONS: COIL CABLE, CAP/CUSHION CONNECTORS. DELIVERIES SHALL COMMENCE 290 DAYS RECEIPT OF ORDER. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				
0002AC	<u>PLT - PRODUCTION QUANTITY YEAR 3</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY	60 (E)	EA	\$ 281.74000	

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [5.0 LBS] LN [12.3 IN] WD [12.3 IN] DP [4.3 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL PACKAGING INSTRUCTIONS: COIL CABLE, CAP/CUSHION CONNECTORS. DELIVERIES SHALL COMMENCE 290 DAYS RECEIPT OF ORDER. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				
0002AD	<u>PLT - PRODUCTION QUANTITY YEAR 4</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC	60 (E)	EA	\$ 290.28000	

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIINMOD/AMD		Page 15 of 60	
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 Packaging and Marking PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [5.0 LBS] LN [12.3 IN] WD [12.3 IN] DP [4.3 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: J I/A/MP [41] J II/CD [1] J III/PM [00] J IV/WM [00] J V/CD [NA] J VI/CT [A] J VII/UC [ED] J VII/IC [00] J IX/A/PK [B] J X/SM [00] J VIIIA/OPI [M] SUPPLEMENTAL PACKAGING INSTRUCTIONS: COIL CABLE, CAP/CUSHION CONNECTORS. DELIVERIES SHALL COMMENCE 290 DAYS RECEIPT OF ORDER. (End of narrative D001) Inspection and Acceptance INSPECTION: OriginACCEPTANCE: Destination				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 16 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002AE	FOB POINT: Destination <u>PLT - PRODUCTION QUANTITY YEAR 5</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [5.0 LBS] LN [12.3 IN] WD [12.3 IN] DP [4.3 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL PACKAGING INSTRUCTIONS: COIL CABLE, CAP/CUSHION CONNECTORS. DELIVERIES SHALL COMMENCE 290 DAYS RECEIPT OF ORDER.	60 (E)	EA	\$ 301.39000	

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD			Page 17 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	(End of narrative D001)				
	<u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				
0003	CABLE ASSEMBLY, SPEC NSN: 6150-01-347-7837 Mfr CAGE: 18876 Mfr Part Number: 13264852				
0003AA	<u>PLT - PRODUCTION QUANTITY YEAR 1</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [6.0 LBS] LN [10.0 IN] WD [10.0 IN] DP [6.0 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [EA] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M]	70 (E)	EA	\$ 350.46000	

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIINMOD/AMD			Page 18 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003AB	DELIVERIES SHALL COMMENCE 260 DAYS RECEIPT OF ORDER. SUPPLEMENTAL INSTRUCTIONS: COIL CABLE TO 8" CUSHIONS CONNECTOR 				

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIINMOD/AMD			Page 19 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003AC	JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 260 DAYS RECEIPT OF ORDER. SUPPLEMENTAL INSTRUCTIONS: COIL CABLE TO 8" CUSHIONS CONNECTOR 				

[illegible]

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 21 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003AE	THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [EA] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 260 DAYS RECEIPT OF ORDER. SUPPLEMENTAL INSTRUCTIONS: COIL CABLE TO 8" CUSHIONS CONNECTOR (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination <u>PLT - PRODUCTION QUANTITY YEAR 5</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [6.0 LBS] LN [10.0 IN]	15 (E)	EA	\$ 440.84000	

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	WD [10.0 IN] DP [6.0 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [EA] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 260 DAYS RECEIPT OF ORDER. SUPPLEMENTAL INSTRUCTIONS: COIL CABLE TO 8" CUSHIONS CONNECTOR (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				
0004	CABLE ASSEMBLY,SPEC NSN: 6150-01-476-2332 Mfr CAGE: 18876 Mfr Part Number: 13502512				
0004AA	<u>PLT - PRODUCTION QUANTITY YEAR 1</u> COMMODITY NAME: CABLE ASSEMBLY,SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY	224 (E)	EA	\$ 563.37000	

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [2.5 LBS] LN [12.5 IN] WD [12.5 IN] DP [4.0 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 190 DAYS RECEIPT OF ORDER. SUPPLEMENTAL INSTRUCTIONS: CUSHION ENDS (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				
0004AB	<u>PLT - PRODUCTION QUANTITY YEAR 2</u> COMMODITY NAME: CABLE ASSEMBLY,SPEC	90 (E)	EA	\$ 582.28000	

CONTINUATION SHEET		Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIINMOD/AMD		Page 24 of 60	
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC					
ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 Packaging and Marking PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [2.5 LBS] LN [12.5 IN] WD [12.5 IN] DP [4.0 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: J I/A/MP [41] J II/CD [1] J III/PM [00] J IV/WM [00] J V/CD [NA] J VI/CT [A] J VII/UC [ED] J VII/IC [00] J IX/A/PK [B] J X/SM [00] J VIIIA/OPI [M] DELIVERIES SHALL COMMENCE 190 DAYS RECEIPT OF ORDER. SUPPLEMENTAL INSTRUCTIONS: CUSHION ENDS (End of narrative D001) Inspection and Acceptance INSPECTION: OriginACCEPTANCE: Destination				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 25 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004AC	FOB POINT: Destination PLT - PRODUCTION QUANTITY YEAR 3 COMMODITY NAME: CABLE ASSEMBLY,SPEC CLIN CONTRACT TYPE: Firm Fixed Price PSC: 6150 <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES) WT [2.5 LBS] LN [12.5 IN] WD [12.5 IN] DP [4.0 IN] THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [B] JX/SM [00] JVIIIA/OPI [M] DELIVERIES SHALL COMMENCE 190 DAYS RECEIPT OF ORDER. SUPPLEMENTAL INSTRUCTIONS: CUSHION ENDS	90 (E)	EA	\$ 601.17000	

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	(End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination FOB POINT: Destination				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 27 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

SECTION B APPROVED SOURCES:

B-1.

CAGE 4W2T2
FEDERAL PRISON INDUSTRIES, INC
4500 PRISON RD
MARION, IL 62959-9011

*** END OF NARRATIVE B0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 28 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

SECTION E - INSPECTION AND ACCEPTANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
E-1	52.246-2	INSPECTION OF SUPPLIES--FIXED-PRICE	AUG/1996
E-2	52.246-15	CERTIFICATE OF CONFORMANCE	APR/1984
E-3	52.246-16	RESPONSIBILITY FOR SUPPLIES	APR/1984
E-4	52.246-11	HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT	DEC/2014

(a) The contractor shall comply with the higher-level quality standard(s) listed below.
All paragraphs except 7.1, 7.2. 7.4, 7.5, and 7.6
Higher Level Contract Quality ISO 9001:2015

(b) The contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts in--

(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or

(2) When the technical requirements of a subcontract require--

(i) Control of such things as design, work operations, in-process control, testing and inspection; or

(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 29 of 60
	PIIN/SIIN	MOD/AMD	

SPRRA2-26-D-0008

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

SECTION F - DELIVERIES OR PERFORMANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	Regulatory Cite	Title	Date
F-1	52.211-17	DELIVERY OF EXCESS QUANTITIES	SEP/1989
F-2	52.242-15	STOP-WORK ORDER	AUG/1989
F-3	52.242-17	GOVERNMENT DELAY OF WORK	APR/1984
F-4	52.247-34	F.O.B. DESTINATION (JAN 1991)	FEB/2006
F-5	52.247-52	CLEARANCE AND DOCUMENTATION REQUIREMENTS--SHIPMENTS TO DOD AIR OR WATER TERMINAL TRANSSHIPMENT POINTS	FEB/2006
F-6	52.247-58	LOADING, BLOCKING, AND BRACING OF FREIGHT CAR SHIPMENTS	APR/1984
F-7	252.211-7008	USE OF GOVERNMENT-ASSIGNED SERIAL NUMBERS	SEP/2010
F-8	52.211-8	TIME OF DELIVERY	JUN/1997

(a) The Government requires delivery to be made according to the following schedule:

REQUIRED DELIVERY SCHEDULE		
ITEM NO.	QUANTITY	WITHIN DAYS AFTER CONTRACT AWARD
CLIN 0001AA	110 EA (e)	360 DAYS
CLIN 0001AB	48 EA (e)	360 DAYS
CLIN 0001AC	48 EA (e)	360 DAYS
CLIN 0001AD	47 EA (e)	360 DAYS
CLIN 0001AE	47 EA (e)	360 DAYS
CLIN 0002AA	332 EA (e)	360 DAYS
CLIN 0002AB	60 EA (e)	360 DAYS
CLIN 0002AC	60 EA (e)	360 DAYS
CLIN 0002AD	60 EA (e)	360 DAYS
CLIN 0002AE	60 EA (e)	360 DAYS
CLIN 0003AA	70 EA (e)	360 DAYS
CLIN 0003AB	15 EA (e)	360 DAYS
CLIN 0003AC	15 EA (e)	360 DAYS
CLIN 0003AD	15 EA (e)	360 DAYS
CLIN 0003AE	15 EA (e)	360 DAYS
CLIN 0004AA	224 EA (e)	360 DAYS
CLIN 0004AB	90 EA (e)	360 DAYS
CLIN 0004AC	90 EA (e)	360 DAYS

The Government will evaluate equally, as regards time of delivery, offers that propose delivery of each quantity within the applicable delivery period specified above. Offers that propose delivery that will not clearly fall within the applicable required delivery period specified above, will be considered nonresponsive and rejected. The Government reserves the right to award under either the required delivery schedule or the proposed delivery schedule, when an offeror offers an earlier delivery schedule than required above. If the offeror proposes no other delivery schedule, the required delivery schedule above will apply.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 30 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

OFFEROR'S PROPOSED DELIVERY SCHEDULE

ITEM NO.	QUANTITY	WITHIN DAYS AFTER DATE OF CONTRACT
CLIN 0001AA	110 EA (e)	280 DAYS
CLIN 0001AB	48 EA (e)	280 DAYS
CLIN 0001AC	48 EA (e)	280 DAYS
CLIN 0001AD	47 EA (e)	280 DAYS
CLIN 0001AE	47 EA (e)	280 DAYS
CLIN 0002AA	332 EA (e)	290 DAYS
CLIN 0002AB	60 EA (e)	290 DAYS
CLIN 0002AC	60 EA (e)	290 DAYS
CLIN 0002AD	60 EA (e)	290 DAYS
CLIN 0002AE	60 EA (e)	290 DAYS
CLIN 0003AA	70 EA (e)	260 DAYS
CLIN 0003AB	15 EA (e)	260 DAYS
CLIN 0003AC	15 EA (e)	260 DAYS
CLIN 0003AD	15 EA (e)	260 DAYS
CLIN 0003AE	15 EA (e)	260 DAYS
CLIN 0004AA	224 EA (e)	190 DAYS
CLIN 0004AB	90 EA (e)	190 DAYS
CLIN 0004AC	90 EA (e)	190 DAYS

(b) Attention is directed to the Contract Award provision of the solicitation that provides that a written award or acceptance of offer mailed, or otherwise furnished to the successful offeror, results in a binding contract. The Government will mail or otherwise furnish to the offeror an award or notice of award not later than the day award is dated. Therefore, the offeror should compute the time available for performance beginning with the actual date of award, rather than the date the written notice of award is received from the Contracting Officer through the ordinary mails. However, the Government will evaluate an offer that proposes delivery based on the Contractor's date of receipt of the contract or notice of award by adding

(1) five calendar days for delivery of the award through the ordinary mails, or

(2) one working day if the solicitation states that the contract or notice of award will be transmitted electronically. (The term "working day" excludes weekends and U.S. Federal holidays.) If, as so computed, the offered delivery date is later than the required delivery date, the offer will be considered nonresponsive and rejected.

(End of Clause)

(a) Definitions. As used in this clause--

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 31 of 60 MOD/AMD
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

media.

"Concatenated unique item identifier" means

- (1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or
- (2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.
- "Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.
- "Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.
- "DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .
- "DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.
- "Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.
- "Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.
- "Government's unit acquisition cost" means
- (1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;
- (2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and
- (3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.
- "Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459 .
- "Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.
- "Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.
- "Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.
- "Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.
- "Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.
- "Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.
- "Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
__N/A__	N/A__
__N/A__	N/A__
__N/A__	N/A__

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
__N/A__	N/A__
__N/A__	N/A__
__N/A__	N/A__

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number N/A.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number N/A.

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or (iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 33 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology--International symbology specification--Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that--

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall--

(A) Determine whether to--

- (1) Serialize within the enterprise identifier;
- (2) Serialize within the part, lot, or batch number; or
- (3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code--

- (A) Shall not be placed on the item; and
- (B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 34 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

- (1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/> .
- (2) Embedded items shall be reported by one of the following methods--
 - (i) Use of the embedded items capability in WAWF;
 - (ii) Direct data submission to the IUID Registry following the procedures and formats at

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIINMOD/AMD	Page 35 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

<http://dodprocurementtoolbox.com/site/uidregistry/>
; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number N/A, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 36 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

SECTION G - CONTRACT ADMINISTRATION DATA

Regulatory Cite	Title	Date
G-1 252.232-7006	WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)	JAN/2023
(a) Definitions. As used in this clause		
"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.		
"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).		
"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.		
"Payment request" and "receiving report" are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.		
(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.		
(c) WAWF access. To access WAWF, the Contractor shall		
(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov ; and		
(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.		
(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/		
(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.		
(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:		
(1) Document type. The Contractor shall submit payment requests using the following document type(s):		
(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.		
(ii) For fixed price line items		
(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.		

INVOICE AND RECEIVING COMBO

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.		
I/A: ORIGIN/DESTINATION		
FOB: DESTINATION		
(iii) For customary progress payments based on costs incurred, submit a progress payment request.		
(iv) For performance based payments, submit a performance based payment request.		
(v) For commercial financing, submit a commercial financing request.		
(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.		
[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]		

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 37 of 60 MOD/AMD
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	HQ0339
Issue By DoDAAC	SPRRA2
Admin DoDAAC**	S1403A
Inspect By DoDAAC	S1403A
Ship To Code	W31P0W
Ship From Code	4W2T2
Mark For Code	N/A
Service Approver (DoDAAC)	N/A
Service Acceptor (DoDAAC)	N/A
Accept at Other DoDAAC	N/A
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

JON D. CARTER
JONATHAN.D.CARTER7.CIV@MAIL.MIL
314-669-0154

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 38 of 60 MOD/AMD
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

SECTION H - SPECIAL CONTRACT REQUIREMENTS

PRODUCTION LOT TEST REQUIREMENTS - GOVERNMENT TESTED (AVN & MSL)

(a) The Contractor shall deliver ALL units of for all CLINs within 360 days negotiated to the Government at (W31P0W) PR W0H9 US ARMY AVIATION AND MISSILE CMD, REDSTONE TECHNCIAL TEST CENTER, COTTONWOOD ROAD BLDG 8022 MF 4500, REDSTONE ARSENAL, AL 35898-8052 for Production Lot Test (PLT). The shipping documentation shall contain this contract number and the Lot/Item identification. If the quantity required for PLT is less than the actual production quantity, the sample(s) to be shipped shall be selected at random during manufacture by the DCMA QAR. Selected copies of all available in-process documentation to include copies of Instruction Letters, Inspection Sheets/records, Material Test Results, and Certificates of Compliance/Conformance shall be made available to the Government upon request.

(b) PLT sample(s) must meet all the requirements of the Technical Data Package (TDP) and all other contractual requirements. If the entire lot is required for testing, delivery of the total quantity required herein shall be accomplished in no more than two (2) shipments. Delivery in one (1) shipment is desirable; however, when two (2) shipments are necessary, fifty percent (50%) or more of the total quantity shall be included in the first shipment, and the remaining quantity shall be included in the second shipment.

(c) Within 60 calendar days after the Government receives the PLT sample(s), the Contracting Officer will notify the Contractor, in writing, of the acceptance or rejection of the quality verification sample(s). The notice of acceptance shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of rejection shall cite reasons for the rejection.

(d) If the PLT sample(s) is/are rejected, the Government may choose to have the contractor remedy the non-conformances found on the product by rework when appropriate, or require the contractor to provide newly manufactured product for inspection. The Contractor, upon Government request, shall make any necessary changes to meet the requirements of this contract. The Contractor shall furnish any reworked or newly manufactured PLT sample(s) to the Government as appropriate, under the terms and conditions and within the time specified by the Government. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule and/or for any additional costs to the Government related to these inspection retests.

(e) The Government reserves the right to reject any lot in which one or more defective units of production are found. The Government, at its discretion, may elect to perform a 100 percent screen on a lot and accept only those items that are conforming to all contract requirements. Under no circumstances shall the Government accept or be obligated to accept known defective hardware as a part of any lot.

(f) The contractor may ship the balance of the production lot quantity prior to government approval.

ELECTRONIC FABRICATION: REQUIREMENTS FOR ELECTRICAL AND ELECTRONIC ASSEMBLIES (AVN & MSL)

- Notwithstanding any other provision contained in any part of this contract to the contrary, the minimum requirements/standards for soldering electrical and electronic assemblies shall be the non-military joint industry standard, ANSI/J-STD-001, Class 3. The revision of ANSI/J-STD-001 in effect on the effective date of the contract shall govern the hardware produced hereunder. A copy of ANSI/J-STD-001 may be obtained from the Institute for Interconnecting and Packaging Electronic Circuits (IPC), 3000 Lakeside Drive, 105N, Bannockburn, IL, 60015, <https://www.ipc.org>.
- The contractor shall establish and maintain an electronic/electrical parts control program and shall maintain and make available to the Government records and data which will provide visibility and traceability of all parts used in the production of the equipment under this contract. This selection of parts shall not be construed to relieve the contractor of meeting specified performance of the end item in which the part is used.
- The Technical Data Package (TDP) shall serve as the baseline Program Parts Selection List (PPSL) and the parts and sources listed therein are the standard parts and sources. A Non-Standard Part is defined as a part or source other than that cited in the PPSL. When the contractor desires to use a part or source other than those cited in the PPSL, the change must be approved by the Government via a Request for Deviation (RFD) as defined elsewhere in this contract. Failure on the part of the contractor to submit such RFDs may result in the replacement of the nonstandard part with the standard part by the Government at the contractor's expense for all affected items.
- The contractor shall provide objective evidence such as form, fit, function, and interchangeability data that shows the proposed part complies with the requirements of applicable parts documentation. The RFD shall detail the technical justification for the use of the part and advantages of the nonstandard part, if any. Compare the nonstandard part to the standard part whose characteristics are nearest to those required for the application. Include, when applicable:
 - Part Number and Source
 - Size and weight data.
 - Electrical and mechanical characteristics
 - Reliability (with data if requested)
 - Availability of the standard part (delivery schedules, still available etc.)
 - Supplemental data such as existing control drawings, specifications, vendor data sheets, and other pertinent data. Data need not be furnished for nonstandard parts covered by documents listed in the Department of Defense Index of Specifications and Standards (DoDISS) or Standardized Military Drawings (SMD).
- The Contractor shall maintain a Lead Free Control Plan (LFCP) and make available to the Government upon request. The requirement for a Lead Free Control Plan shall be flowed down to suppliers of equipment that may include lead-free materials. The LFCP shall follow the guidelines set forth in GEIA-STD-0005-1, "Performance Standard for Aerospace and High Performance Electronic Systems Containing Lead-

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 39 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

Free Solder" or its equivalent. In addition, the LFCP shall also include tin whisker mitigation plans in accordance with GEIA-STD-0005-2, "Standard for Mitigating the Effects of Tin Whiskers in Aerospace and High Performance Electronic Systems" or its equivalent, at control level 2C or equivalent. The Contractor should include in the LFCP any special design considerations, manufacturing process controls, test and qualification requirements, quality inspection and screening, marking and identification, maintenance and repair processes, and other steps taken to mitigate risk.

6. The Contractor shall prepare, or update existing, Counterfeit Risk Management Plan and make available to the Government upon request. The Plan shall meet the requirements of SAE AS5553 for electronic items. The Contractor shall procure parts from original manufacturers or the original manufacturers' franchised distributors. Contractors shall report counterfeits and suspected counterfeits to the Government and in the Government Industry Data Exchange Program (GIDEP), in accordance with the GIDEP Operations Manual, S0300-BT-PRO-010.

IDENTIFICATION MARKING REQUIREMENTS (AVN & MSL)
Item shall be marked per MIL-STD-130.

ENGINEERING CHG PROPOSAL, VALUE ENG CHG PROPOSAL, REQUEST FOR VARIANCE, ENG RELEASE RECORDS, NOTICE OF REVISION, AND SPECIFICATION CHG NOTICE PREPARATION AND SUBMISSION INSTRUCTIONS

1. Contractor initiated Engineering Change Proposals (ECPs), Value Engineering Change Proposals (VECPs), and Request for Variance (RFVs), collectively referred to as "proposals", shall be prepared, submitted and distributed in accordance with paragraphs 2, 3 and 4 below except as specified in paragraph 5 below.

2. Format.

a. Class I ECPs require the "Long Form Procedure" for documenting the change and describing the effects of the change on the suitability and supportability of the Configuration Item (CI). Class I ECPs should be limited to those that are necessary or offer significant benefit to the Government. Class I ECPs are those that affect the performance, reliability, maintainability, survivability, weight, balance, moment of inertia, interface characteristics, electromagnetic characteristics, or other technical requirements in the specifications and drawings. Class I ECPs also include those changes that affect Government Furnished Equipment, safety, compatibility, retrofit, operation and maintenance manuals, interchangeability, substitutability, replaceability, source control specifications and drawings, costs, guarantees or warranties, deliveries, or schedules. Class II ECPs are those that do not affect form, fit and function, cost, or schedule of the system CI and do not meet the other criteria described above for Class I ECPs.

b. Long Form Procedure: Class I changes to the CI require that DD Form 1692, pages 1 through 7 (as applicable), be prepared. Use of this procedure assures that all effects of the change on the CI are properly addressed and documented to the necessary detail to allow proper evaluation of the proposed change.

c. Short Form Procedure: ECPs and VECPs, which meet the requirements of Class II ECPs, shall be prepared using DD Form 1692 (page 1 only). Supplemental pages may be used with the form as necessary. The responsible Defense Contract Management Agency (DCMA) Contract Management Office (CMO) will validate data entries in Block 5 "Class of ECP", Block 6 "Priority", and Block 8 "Justification Codes."

d. The Contractor shall not manufacture items for acceptance by the Government that incorporate a known departure from requirements, unless the Government has approved an RFV. RFVs shall be prepared using DD Form 1694.

e. Each ECP and RFV shall be accompanied by a written and signed evaluation prepared by the responsible Defense Contract Management Agency (DCMA) technical representative. The DCMA written evaluation shall be considered part of the ECP/RFV proposal.

f. Classification of RFVs.

(1) Major RFVs. RFVs written against CIs shall be designated as major when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation involving health; performance; interchangeability; reliability; survivability; maintainability; effective use or operation; weight; appearance (when a factor); or when there is a departure from a requirement classified as major in the contractual documentation.

(2) Critical RFVs. RFVs written against CIs shall be designated as critical when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation involving safety or when there is a departure from a requirement classified as critical in the contractual documentation.

(3) Minor RFVs. RFVs written against CIs shall be designated as minor when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation which does not involve any of the factors listed above in paragraphs f(1) or g(2), or when there is a departure from a requirement classified as minor in the contractual documentation.

g. Proposals shall include sufficient technical data to describe all changes from existing contract requirements.

h. Proposals shall include sufficient justification for making the change, including a statement of contract impact, if the change is not authorized.

i. Proposals for ECPs shall set forth a "not to exceed" price and delivery adjustment acceptable to the Contractor if the Government subsequently approves the proposal. If approved, the equitable increase shall not exceed this amount.

j. Times allowed for technical decisions for ECP and RFV proposals will be worked out via mutual agreement between the Contractor and the Government.

k. Proposals for VECPs shall set forth a "not less than" price and delivery adjustment acceptable to the Contractor if the Government subsequently approves the proposal. If approved, the savings shall not be less than this amount.

l. The Contractor shall utilize DD Form 2617, "Engineering Release Record" (ERR) to release new or revised configuration documentation to the Government for approval.

m. The Contractor shall utilize DD Form 1695, "Notice of Revision" (NOR) to describe the exact change(s) to configuration documentation specified as a data requirement in the contract. The Contractor shall describe the change using sub-sections entitled

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 40 of 60 MOD/AMD
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

"WAS" to describe the current contractual technical requirement and "IS" to describe the proposed new requirement.

3. Submittal. The preferred method of submittal is digitally as a single file in Adobe Acrobat Portable Document Format (PDF). Unless otherwise specified, alternate methods of submittal shall be proposed to and authorized by the PCO prior to submittal. If the hardcopy method is requested and approved, the Contractor shall submit two (2) copies of each proposal to the responsible Administrative Contracting Officer (ACO). One (1) copy of each proposal shall be returned to the Contractor within (5) working days after receipt by the ACO, stating whether or not the proposal is in compliance with this provision. Any unresolved differences between the ACO and the Contractor concerning ECPs, VECs, or RFVs will be submitted to the PCO for resolution.

4. Distribution.

a. Electronic Distribution. The preferred method of distribution for unclassified is through the email or DOD safe site (<https://safe.apps.mil>) addressed to the PCO. Classified material shall be distributed via SIPERNET or by classified email as determined by the PCO. Microsoft Word is required for use with the transmittal letter (E-mail). Required forms will be attached to the E-mail. All forms may be obtained from the Office of the Secretary of Defense Executive Services Directorate DoD Directives Division website (<http://www.esd.whs.mil/DD/>) via the DoD Forms menu. The forms are provided in fillable Adobe Acrobat Portable Document Format (PDF). In order to access and use the forms, the user must have the "Adobe Acrobat" software installed on their computer. Drawings may be scanned and sent as an attachment. In some cases, because of size, drawings may have to be sent as hard copies or sent under special electronic instructions provided by the PCO.

5. Alternate Format, Submittal or Distribution Process. Proposals may be prepared in a different format, submitted using a different submittal process or distributed in a different manner than specified in paragraphs 2, 3 and 4 above, so long as the alternate approach is in accordance with a Government approved configuration management plan governed by this contract or the PCO authorizes the alternate format, submittal, or distribution process.

6. Government Acceptance. Acceptance of a proposal by the Government shall be affected by the issuance of a change order or execution of a supplemental agreement incorporating the proposal into the contract unless the PCO authorizes another method of acceptance. The Government will notify the Contractor in writing if a proposal is determined to be unacceptable.

REVISIONS TO DRAWINGS/PART NUMBERS REQUIREMENT (AVN & MSL)

(a) Sources in receipt of this solicitation are requested, at no cost to the Government, to immediately notify the Contracting Officer if they are aware of any change(s)/revision(s) to the drawing(s) or part number(s) in this solicitation which have been approved by the Government for implementation. Notification of part number changes shall be supported by data which indicates the type of change, approving authority as required by ANSI EIA 649 MIL-STD-973 and date and method of submittal of provisioning documentation and drawings. If complete data package has not been previously provided, the contractor shall, at no direct cost to the Government, immediately submit applicable drawings, along with a copy of the approval change authority, to the Contracting Officer, at the office symbol and mailing address listed in the "ISSUED BY" block on page one (1) of this document. The minimum acceptable data includes the next higher assembly and the item of Supply Detail Drawings which will allow provisioning, National Stock Number assignment and updating of AMCOM's data records.

(b) The contractor hereby verifies previous contractual submission of technical data:

Contract No.:

Contractor:

Explanation of Data Rights:

(c) The Government is not by this request soliciting, nor is the Government liable for cost incurred by the offeror in preparing or developing modifications, deviations, waivers, or other changes to drawings or part number(s). Furthermore, this request does not authorize changes to the drawing(s) or part number(s) for this acquisition, another contract, or for any other purpose. Offerors performing any contract awarded as a result of this solicitation must comply with the drawing(s) and specifications as set forth herein, unless this solicitation is amended or any resulting contract is modified by the Contracting Officer.

(d) All proposed part number changes shall be submitted pursuant to the requirements of the requirement entitled, "ENGINEERING CHG PROPOSAL, VALUE ENG CHG PROPOSAL, REQUEST FOR VARIANCE, ENG RELEASE RECORDS, NOTICE OF REVISION, AND SPECIFICATION CHG NOTICE PREPARATION AND SUBMISSION INSTRUCTIONS"

SOURCES ELIGIBLE FOR AWARD CONSIDERATION (AVN & MSL)

(a) Competition under this solicitation is restricted to the following sources:

(1) Approved Sources listed in Section B -- sources that have been approved by the prime manufacturer or the Government for supply of item(s) listed in this solicitation, to assure the requisite safe, dependable, effective operation and support of military equipment.

(2) Sources that have been approved prior to award -- other than approved sources listed in Section B.

(3) Non-manufacturers--offers from non-manufacturers (distributors) will only be considered for award if the required item(s) is new material and has been or will be obtained from a source of supply which has been approved prior to award. The source and part number of the item the offeror intends to supply must be stated in the offer.

(b) Only offers submitted by the above sources will be considered for award under this solicitation.

(c) Offerors (prospective manufacturers or non-manufacturers [distributors]) who wish to become an approved source of supply for an item listed in this solicitation should proceed per the instructions set forth in paragraph (d) below. It is noted that offeror requests for source approval in conjunction with this procurement will not be a cause for delay in this solicitation action. However, if it is determined that additional sources will clearly benefit the Government and that any delay incident to their approval would not impact readiness, a reasonable delay may be entertained. Whether or not such delay will occur will be solely at the discretion of the Government, and the time set for opening of the Invitation for Bids or the closing date of the Request for Proposals may or may not be extended. An extension will be witnessed by issuance of an amendment to this solicitation.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 41 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

- (d) Offerors (prospective manufacturers or non-manufacturers [distributors]) seeking to obtain source approval, must submit a Source Approval Request (SAR) package, for review and approval, to the Systems Readiness Directorate (SRD), Aviation and Missile Center, DEVCOM. Source approval must be obtained prior to being considered for contract award. Approvals are made on an individual part number basis for a specific manufacturing location (CAGE). SAR instructions can be found at <https://www/avmc.army.mil/Directorates/SRD/SAR/>. Questions concerning SAR submissions can be directed to the SRD SAR Team at usarmy.redstone.devcom-avmc.mbx.amr-m-sar@army.mil.
- (e) The Aviation and Missile Lifecycle Management Command (AMCOM) may require additional data, testing, or plant visits before it is able to completely evaluate a SAR. This may require the offeror (at no expense to the Government) to supply parts for testing, engine run up, or flight tests. In that event, the requestor will be so advised. AMCOM reserves the right to approve a contractor for award prior to completion of physical testing of the offered item. In such cases, the contractor shall perform any outstanding tests and provide all required documentation at no cost to the Government prior to entering upon full production. Lack of successful performance within the specified timeframe shall be grounds for a no cost termination.
- (f) When a SAR is received, it will be processed for evaluation. If the evaluation and approval (including preparation or update of the requisite technical data package (TDP)) occurs before award, the requestor will be considered for award if a proposal was submitted per (d) above. If the evaluation/TDP preparation has not been completed prior to award, AMCOM will continue the process until complete. If the requestor's SAR becomes approved, the requestor will be eligible for consideration on all future solicitations for the item.
- (g) All approval or disapproval notices shall be officially provided to the contractor by the appropriate technical official.
- (h) Non-manufacturers (distributors) seeking to supply an item from a non-approved source must first ensure that the source becomes approved in accordance with (d) above prior to contract award.

DEFENSE PRIORITY AND ALLOCATIONS SYSTEM (DPAS) RATED AWARDS

Defense Priorities and Allocations System (DPAS) Rated Awards (JUNE 2025)

A DPAS rated order indicates the priority the contractor must give to the performance of the award. There are two priority ratings: "DX" and "DO". All "DX" rated orders have equal priority with each other and take preference over "DO" rated orders and unrated orders. All "DO" rated orders have equal priority with each other and take preference over unrated orders.(see 15 CFR 700.11 and DoDM 4400.1-M).

Mandatory Contractor Performance Scheduling

A contractor must schedule operations, including the acquisition of all needed production items, in a timely manner to satisfy the delivery requirements of each DPAS rated order. Additionally, contractors are required to use DPAS rated orders with their U.S. suppliers to obtain items needed to fill rated orders (15 CFR 700.15). Contractors may also use DPAS rated orders to obtain replacements of inventoried items used to fill rated orders (see 15 CFR 700.17(b)). Modifying production or delivery schedules is necessary only when required delivery dates for a rated order cannot otherwise be met. Since "DX" indicates the highest rated order, the manufacturer will schedule its production before processing other lower or unrated orders. "DX" rated orders must be given production preference over "DO" rated orders and unrated orders if necessary to meet required delivery dates, even if this requires the diversion of items being processed or ready for delivery against unrated orders. Similarly, "DO" rated orders must be given preference over unrated orders. If an accepted rated order of equal priority status conflicts with other accepted rated orders of equal priority status, the contractor must prioritize the rated orders in the sequence in which the rated orders are to be delivered or performed (see 15 CFR 700.14).

Contractor Acceptance of a DPAS rated order:

[Contractors receiving an award that includes a DPAS rating shall advise DLA via the post award mailbox (DLAHSVPostAwardTeam@dla.mil) , if they cannot perform in accordance with the requirements of the applied DPAS rating. When rejecting an order in full, communication to the contracting officer must include a detailed reason for rejection. If the order can be fulfilled at a later date, the contractor must provide, a) the earliest possible delivery date, b) a detailed reason why the awarded delivery date cannot be met (e.g. reason should not simply state a production delay) and, c) an offer to accept the order based on that date. Contractors must advise DLA within fifteen (15) working days after receipt of a "DO" rated order, and within ten (10) working days after receipt of a "DX" rated order if they cannot perform in accordance with the DPAS rating. Contractors that do not contact DLA are self-attesting that they acknowledge receipt of the award and will conform to the DPAS rating requirement. If the prescribed response time has passed and the contractor learns that shipment or performance will be delayed, the contractor is still required to notify DLA immediately.

Special Priority Assistance:

Preferential scheduling is a must for DPAS rated orders (see 15 CFR 700.14). If a contractor learns that a shipment or performance will be delayed after the allotted response time has passed or any other issue arises that will affect deliveries during the duration of the contract, the contractor is required to notify DLA immediately through the use of Form BIS-999, Special Priorities Assistance (SPA). Deviations from schedules cannot be approved without the completion and submission of this form. Once submitted, DLA and its customers will discuss the SPA for approval. The Department of Commerce requires an approved BIS-999 prior to reprioritizing DPAS rated orders and its schedules (See 15 CFR 700.50). Please contact DLA post award for any SPA questions or concerns.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 42 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

ORDERING LIMITATION FOR CERTAIN CLINS

Notwithstanding the five (5) year ordering period of this Indefinite-Delivery Indefinite-Quantity (IDIQ) contract, the maximum quantities for CLINs 0004AA, 0004AB, and 0004AC are fully allocated within the first three ordering periods. Accordingly, no additional quantity remains available for ordering for these CLINs after Ordering Period 3 (Day 1,095 after date of contract award) unless additional quantities are added by contract modification.

This limitation does not affect the ordering availability of the remaining CLINs under this contract.

*** END OF NARRATIVE H0002 ***

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 43 of 60
	PIIN/SIIN	MOD/AMD	

SPRRA2-26-D-0008

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

SECTION I - CONTRACT CLAUSES

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
I-1	52.202-1	DEFINITIONS	JUN/2020
I-2	52.203-3	GRATUITIES	APR/1984
I-3	52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY/2014
I-4	52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (NOV 2021)	NOV/2021
I-5	52.203-7	ANTI-KICKBACK PROCEDURES	JUN/2020
I-6	52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-7	52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-8	52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN/2020
I-9	52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN/2017
I-10	52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS	JUN/2020
I-11	52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT/2018
I-12	52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG/2020
I-13	52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)	DEC/2023
I-14	52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)	JAN/2025
I-15	52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT/2018
I-16	52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV/2015
I-17	52.211-5	MATERIAL REQUIREMENTS	AUG/2000
I-18	52.211-15	DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS	APR/2008
I-19	52.215-2	AUDIT AND RECORDS--NEGOTIATIONS	JUN/2020
I-20	52.215-8	ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT	OCT/1997
I-21	52.215-14	INTEGRITY OF UNIT PRICES (NOV 2021) -- ALTERNATE I (OCT 1997)	OCT/1997
I-22	52.215-14	INTEGRITY OF UNIT PRICES	NOV/2021
I-23	52.215-15	PENSION ADJUSTMENTS AND ASSET REVERSIONS	OCT/2010
I-24	52.215-18	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS	JUL/2005
I-25	52.217-2	CANCELLATION UNDER MULTI-YEAR CONTRACTS	OCT/1997
I-26	52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)	JAN/2025
I-27	52.222-1	NOTICE TO THE GOVERNMENT OF LABOR DISPUTES	FEB/1997
I-28	52.222-20	CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES, AND EQUIPMENT	JUN/2020
I-29	52.222-37	EMPLOYMENT REPORTS ON VETERANS	JUN/2020
I-30	52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC/2010
I-31	52.222-50	COMBATING TRAFFICKING IN PERSONS (OCT 2025)	NOV/2021
I-32	52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)	JAN/2025
I-33	52.225-13	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES	FEB/2021
I-34	52.226-7	DRUG-FREE WORKPLACE (MAY 2024)	MAY/2024
I-35	52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)	MAY/2024
I-36	52.227-1	AUTHORIZATION AND CONSENT	JUN/2020
I-37	52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN/2020
I-38	52.229-3	FEDERAL, STATE, AND LOCAL TAXES	FEB/2013
I-39	52.232-1	PAYMENTS	APR/1984
I-40	52.232-8	DISCOUNTS FOR PROMPT PAYMENT	FEB/2002

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 44 of 60
	PIIN/SIIN	MOD/AMD	

SPRRA2-26-D-0008

Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

	Regulatory Cite	Title	Date
I-41	52.232-11	EXTRAS	APR/1984
I-42	52.232-17	INTEREST	MAY/2014
I-43	52.232-23	ASSIGNMENT OF CLAIMS	MAY/2014
I-44	52.232-23	ASSIGNMENT OF CLAIMS (MAY 2014) -- ALTERNATE I (APR 1984)	APR/1984
I-45	52.232-25	PROMPT PAYMENT	JAN/2017
I-46	52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT	OCT/2018
I-47	52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN/2013
I-48	52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)	MAR/2023
I-49	52.233-1	DISPUTES	MAY/2014
I-50	52.233-1	DISPUTES (MAY 2014) -- ALTERNATE I (DEC 1991)	DEC/1991
I-51	52.233-3	PROTEST AFTER AWARD	AUG/1996
I-52	52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT/2004
I-53	52.242-4	CERTIFICATION OF FINAL INDIRECT COSTS	JAN/1997
I-54	52.242-13	BANKRUPTCY	JUL/1995
I-55	52.243-1	CHANGES--FIXED PRICE	AUG/1987
I-56	52.244-5	COMPETITION IN SUBCONTRACTING (AUG 2024)	AUG/2024
I-57	52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-00003)	MAR/2025
I-58	52.246-23	LIMITATION OF LIABILITY	FEB/1997
I-59	52.247-63	PREFERENCE FOR U.S.-FLAG AIR CARRIERS (JAN 2025)	JAN/2025
I-60	52.248-1	VALUE ENGINEERING	JUN/2020
I-61	52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)	APR/2012
I-62	52.249-8	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)	APR/1984
I-63	52.253-1	COMPUTER GENERATED FORMS	JAN/1991
I-64	252.203-7000	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS	SEP/2011
I-65	252.203-7001	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023)	JAN/2023
I-66	252.203-7002	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)	DEC/2022
I-67	252.204-7000	DISCLOSURE OF INFORMATION	OCT/2016
I-68	252.204-7003	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT	APR/1992
I-69	252.204-7006	BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)	MAY/2023
I-70	252.204-7012	SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1)	MAY/2024
I-71	252.204-7015	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)	JAN/2023
I-72	252.204-7018	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)	JAN/2023
I-73	252.204-7020	NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)	NOV/2023
I-74	252.209-7004	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY E GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)	MAY/2019
I-75	252.222-7006	RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)	JAN/2023
I-76	252.225-7001	BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM--BASIC (FEB 2024)	FEB/2024
I-77	252.225-7002	QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS	MAR/2022
I-78	252.225-7012	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES	APR/2022
I-79	252.225-7041	CORRESPONDENCE IN ENGLISH	JUN/1997
I-80	252.225-7048	EXPORT-CONTROLLED ITEMS	JUN/2013
I-81	252.225-7056	PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)	JAN/2023
I-82	252.226-7001	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023)	JAN/2023
I-83	252.227-7013	RIGHTS IN TECHNICAL DATA--OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)	JAN/2025
I-84	252.227-7014	RIGHTS IN NONCOMMERCIAL COMPUTER SOFTWARE AND NONCOMMERCIAL COMPUTER SOFTWARE DOCUMENTATION(JAN 2025)	JAN/2025
I-85	252.227-7015	TECHNICAL DATA--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)	JAN/2025
I-86	252.227-7016	RIGHTS IN BID OR PROPOSAL INFORMATION (JAN 2023)	JAN/2023
I-87	252.227-7019	VALIDATION OF ASSERTED RESTRICTIONS--COMPUTER SOFTWARE (JAN 2025)	JAN/2025
I-88	252.227-7025	LIMITATIONS ON THE USE OR DISCLOSURE OF GOVERNMENT-FURNISHED	JAN/2025

	Regulatory Cite	Title	Date
		INFORMATION MARKED WITH RESTRICTIVE LEGENDS (JAN 2025)	
I-89	252.227-7027	DEFERRED ORDERING OF TECHNICAL DATA OR COMPUTER SOFTWARE	APR/1988
I-90	252.227-7030	TECHNICAL DATA--WITHHOLDING OF PAYMENT	MAR/2000
I-91	252.227-7037	VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA (JAN 2025)	JAN/2025
I-92	252.231-7000	SUPPLEMENTAL COST PRINCIPLES	DEC/1991
I-93	252.232-7003	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS	DEC/2018
I-94	252.232-7010	LEVIES ON CONTRACT PAYMENTS	DEC/2006
I-95	252.243-7001	PRICING OF CONTRACT MODIFICATIONS	DEC/1991
I-96	252.243-7002	REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)	DEC/2022
I-97	252.244-7000	SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)	NOV/2023
I-98	252.246-7007	CONTRACTOR COUNTERFEIT ELECTRONIC PART DETECTION AND AVOIDANCE SYSTEM (JAN2023)	JAN/2023
I-99	252.247-7023	TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)	OCT/2024
I-100	52.204-30	Federal Acquisition Supply Chain Security Act Orders?Prohibition (Dec 2023)	DEC/2023

(a) Definitions. As used in this clause

Covered article, as defined in 41 U.S.C. 4713(k), means

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 2011.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 46 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) Prohibition. (1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase FASCSA order in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5) (i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 47 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) Executive agency review of disclosures. The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) Notice and reporting requirement. (1) During contract performance, the Contractor shall review SAM.gov at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause. (2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3) (i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. (ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil> .

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) Removal. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

ar(e) Subcontracts. (1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 48 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

(c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

I-101 52.216-18 ORDERING AUG/2020

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from the date of award through 1826 days thereafter.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I-102 52.216-19 ORDER LIMITATIONS OCT/1995

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than 1, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor --

(1) Any order for a single item in excess of 300 NSN 6150014762330, 572 NSN 6150014762331, 130 NSN 6150013477837, 404 NSN 6150014762332;

(2) Any order for a combination of items in excess of 1,406; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 30, . days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 49 of 60 MOD/AMD
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

I-103 52.216-22 INDEFINITE QUANTITY OCT/1995

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after any orders placed after 1826 DACA.

(End of Clause)

I-104 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS DEC/2014

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

I-105 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS NOV/2021

(a) Definitions. As used in this clause--

"Covered contractor information system" means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

"Federal contract information" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public Web sites) or simple transactional information, such as necessary to process payments.

"Information" means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

"Safeguarding" means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 50 of 60 MOD/AMD
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

- (iv) Control information posted or processed on publicly accessible information systems.
 - (v) Identify information system users, processes acting on behalf of users, or devices.
 - (vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
 - (vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
 - (viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
 - (ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
 - (x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
 - (xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
 - (xii) Identify, report, and correct information and information system flaws in a timely manner.
 - (xiii) Provide protection from malicious code at appropriate locations within organizational information systems.
 - (xiv) Update malicious code protection mechanisms when new releases are available.
 - (xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.
- (2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.
- (c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

I-10652.204-25PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENTNOV/2021

(a) Definitions. As used in this clause--

"Backhaul" means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

"Covered foreign country" means The Peoples Republic of China.

"Covered telecommunications equipment or services" means--

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 51 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Critical technology" means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Interconnection arrangements" means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

"Reasonable inquiry" means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

"Roaming" means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 52 of 60 MOD/AMD
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil> . For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil> .

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-107 52.204-27 Prohibition on a ByteDance Covered Application (Jun 2023) JUN/2023
(a) Definitions. As used in this clause

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, No TikTok on Government Devices Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractors employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 53 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-108 52.215-19 NOTIFICATION OF OWNERSHIP CHANGES OCT/1997

(a) The Contractor shall make the following notifications in writing:

(1) When the Contractor becomes aware that a change in its ownership has occurred, or is certain to occur, that could result in changes in the valuation of its capitalized assets in the accounting records, the Contractor shall notify the Administrative Contracting Officer (ACO) within 30 days.

(2) The Contractor shall also notify the ACO within 30 days whenever changes to asset valuations or any other cost changes have occurred or are certain to occur as a result of a change in ownership.

(b) The Contractor shall --

- (1) Maintain current, accurate, and complete inventory records of assets and their costs;
- (2) Provide the ACO or designated representative ready access to the records upon request;
- (3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractors ownership changes; and
- (4) Retain and continue to maintain depreciation and amortization schedules based on the asset records maintained before each Contractor ownership change.

(c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(k).

(End of Clause)

I-109 52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REPRESENTATION (JAN 2025) JAN/2025

(a) Definitions. As used in this clause

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.
- (2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

- (1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.
- (2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.
- (3) For long-term contracts-

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 54 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards> .

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it __ is, __ is not a small business concern under NAICS Code ____ assigned to contract number ____.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a women-owned small business concern.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 55 of 60
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ___ is, ___ is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it ___ is, ___ is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it ___ is, ___ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that

(i) It ___ is, ___ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ___ is, ___ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title._____]

(End of clause)

I-110 52.222-19 CHILD LABOR--COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025) JAN/2025
0(a) Applicability. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in--

- (1) Israel, and the anticipated value of the acquisition is \$50,000 or more;
- (2) Mexico, and the anticipated value of the acquisition is \$102,280 or more; or
- (3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is \$174,000 or more.

(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:

- (1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.
- (2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN	Page 56 of 60 MOD/AMD
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Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending and debarring official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.

(3) The suspending and debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.

(End of clause)

I-111 52.222-35 EQUAL OPPORTUNITY FOR VETERANS

JUN/2020

(a) Definitions. As used in this clause--

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-112 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES

JUN/2020

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-113 52.252-2 CLAUSES INCORPORATED BY REFERENCE (Feb 1998)

FEB/1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 57 of 60
	PIIN/SIIN SPRRA2-26-D-0008	MOD/AMD	
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC (End of Clause)			

I-11452.252-6AUTHORIZED DEVIATIONS IN CLAUSES (Nov 2020)NOV/2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DoD Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

I-115252.225-7013DUTY-FREE ENTRYNOV/2023

Definitions. As used in this clause

"Component," means any item supplied to the Government as part of an end product or of another component.

"Customs territory of the United States" means the 50 States, the District of Columbia, and Puerto Rico.

"Eligible product" means

(1) "Designated country end product," as defined in the Trade Agreements (either basic or alternate) clause of this contract;

(2)Free Trade Agreement country end product,other than aend product,aMoroccan end product,aPanamanian end product,or aPeruvian end product,as defined in the Buy AmericanFree Trade AgreementsBalance of Payments Program (either basic or alternate II) clause of this contract; or

(3)Free Trade Agreement country end productother than aend product, Korean end product,Moroccan end product, Panamanian end product,orPeruvian end product,as defined in the Buy AmericanFree Trade AgreementsBalance of Payments Program (either alternate IV or alternate V) clause of this contract.

"Qualifying country" and "qualifying country end product" have the meanings given in the Trade Agreements clause, the Buy American and Balance of Payments Program clause, or the Buy AmericanFree Trade AgreementsBalance of Payments Program clause of this contract, basic or alternate.

(b) Except as provided in paragraph (i) of this clause, or unless supplies were imported into the customs territory of the United States before the date of this contract or the applicable subcontract, the price of this contract shall not include any amount for duty on

(1) End items that are eligible products or qualifying country end products;

(2) Components (including, without limitation, raw materials and intermediate assemblies) produced or made in qualifying countries, that are to be incorporated in U.S.- made end products to be delivered under this contract; or

(3) Other supplies for which the Contractor estimates that duty will exceed \$300 per shipment into the customs territory of the United States.

(c) The Contractor shall

(1) Claim duty-free entry only for supplies that the Contractor intends to deliver to the Government under this contract, either as end items or components of end items; and

(2) Pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use, other than

(i) Scrap or salvage; or

(ii) Competitive sale made, directed, or authorized by the Contracting Officer.

(d) Except as the Contractor may otherwise agree, the Government will execute duty-free entry certificates and will afford such assistance as appropriate to obtain the duty-free entry of supplies

(1) For which no duty is included in the contract price in accordance with paragraph

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 58 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

- (b) of this clause; and
- (2) For which shipping documents bear the notation specified in paragraph (e) of this clause.
- (e) For foreign supplies for which the Government will issue duty-free entry certificates in accordance with this clause, shipping documents submitted to Customs shall
- (1) Consign the shipments to the appropriate
- (i) Military department in care of the Contractor, including the Contractor's delivery address; or
- (ii) Military installation; and
- (2) Include the following information:
- (i) Prime contract number and, if applicable, delivery order number.
- (ii) Number of the subcontract for foreign supplies, if applicable.
- (iii) Identification of the carrier.
- (iv)(A) For direct shipments to a U.S. military installation, the notation: "UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE Duty-Free Entry to be claimed pursuant to Section XXII, Chapter 98, Subchapter VIII, Item 9808.00.30 of the Harmonized Tariff Schedule of the United States. Upon arrival of shipment at the appropriate port of entry, District Director of Customs, please release shipment under 19 CFR part 142 and notify Defense Contract Management Agency (DCMA) St. Louis, St. Louis, MO, ATTN: Duty Free Entry Team, 1222 Spruce Street, Room 9.300, St. Louis, MO 63103-2812, for execution of Customs Form 7501, 7501A, or 7506 and any required duty-free entry certificates."
- (B) If the shipment will be consigned to other than a military installation, e.g., a domestic contractor's plant, the shipping document notation shall be altered to include the name and address of the contractor, agent, or broker who will notify DCMA St. Louis, Duty Free Entry Team, for execution of the duty-free entry certificate. (If the shipment will be consigned to a contractor's plant and no duty-free entry certificate is required due to a trade agreement, the Contractor shall claim duty-free entry under the applicable trade agreement and shall comply with the U.S. Customs Service requirements. No notification to DCMA St. Louis, Duty Free Entry Team, is required.)
- (v) Gross weight in pounds (if freight is based on space tonnage, state cubic feet in addition to gross shipping weight).
- (vi) Estimated value in U.S. dollars.
- (vii) Activity address number of the contract administration office administering the prime contract, e.g., for DCMA Dayton, S3605A.
- (f)Preparation of customs forms.
- (1)(i) Except for shipments consigned to a military installation, the Contractor shall
- (A) Prepare any customs forms required for the entry of foreign supplies into the customs territory of the United States in connection with this contract; and
- (B) Submit the completed customs forms to the District Director of Customs, with a copy to DCMA St. Louis, Duty Free Entry Team for execution of any required duty-free entry certificates.
- (ii) Shipments consigned directly to a military installation will be released in accordance with sections 10.101 and 10.102 of the U.S. Customs regulations.
- (2) For shipments containing both supplies that are to be accorded duty-free entry and supplies that are not, the Contractor shall identify on the customs forms those items that are eligible for duty-free entry.
- (g) The Contractor shall
- (1) Prepare (if the Contractor is a foreign supplier), or shall instruct the foreign supplier to prepare, a sufficient number of copies of the bill of lading (or other shipping document) so that at least two of the copies accompanying the shipment will be available for use by the District Director of Customs at the port of entry;
- (2) Consign the shipment as specified in paragraph (e) of this clause; and

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-26-D-0008 PIIN/SIIN MOD/AMD	Page 59 of 60
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

- (3) Mark on the exterior of all packages
- (i) "UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE"; and
- (ii) The activity address number of the contract administration office administering the prime contract.
- (h) The Contractor shall notify the Administrative Contracting Officer (ACO) in writing of any purchase of eligible products or qualifying country supplies to be accorded duty-free entry, that are to be imported into the customs territory of the United States for delivery to the Government or for incorporation in end items to be delivered to the Government. The Contractor shall furnish the notice to the ACO immediately upon award to the supplier and shall include in the notice
- (1) The Contractor's name, address, and Commercial and Government Entity (CAGE) code;
- (2) Prime contract number and, if applicable, delivery order number;
- (3) Total dollar value of the prime contract or delivery order;
- (4) Date of the last scheduled delivery under the prime contract or delivery order;
- (5) Foreign supplier's name and address;
- (6) Number of the subcontract for foreign supplies;
- (7) Total dollar value of the subcontract for foreign supplies;
- (8) Date of the last scheduled delivery under the subcontract for foreign supplies;
- (9) List of items purchased;
- (10) An agreement that the Contractor will pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use other than
- (i) Scrap or salvage; or
- (ii) Competitive sale made, directed, or authorized by the Contracting Officer;
- (11) Country of origin; and
- (12) Scheduled delivery date(s).
- (i) This clause does not apply to purchases of eligible products or qualifying country supplies in connection with this contract if
- (1) The supplies are identical in nature to supplies purchased by the Contractor or any subcontractor in connection with its commercial business; and
- (2) It is not economical or feasible to account for such supplies so as to ensure that the amount of the supplies for which duty-free entry is claimed does not exceed the amount purchased in connection with this contract.
- (j) The Contractor shall
- (1) Insert the substance of this clause, including this paragraph (j), in all subcontracts for
- (i) Qualifying country components; or
- (ii) Nonqualifying country components for which the Contractor estimates that duty will exceed \$200 per unit;
- (2) Require subcontractors to include the number of this contract on all shipping documents submitted to Customs for supplies for which duty-free entry is claimed pursuant to this clause; and
- (3) Include in applicable subcontracts
- (i) The name and address of the ACO for this contract;
- (ii) The name, address, and activity address number of the contract administration office specified in this contract; and

CONTINUATION SHEET	Reference No. of Document Being Continued	Page 60 of 60
	SPRRA2-26-D-0008 PIIN/SIINMOD/AMD	
Name of Offeror or Contractor: FEDERAL PRISON INDUSTRIES, INC		

(iii) The information required by paragraphs (h)(1), (2), and (3) of this clause.

(End of clause)

I-116252.225-7972PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2024-00014)AUG/2024

(a) Definition. As used in this clause Covered foreign country means any of the following:

(1) The Peoples Republic of China.

(2) The Russian Federation.

(3) The Islamic Republic of Iran.

(4) The Democratic Peoples Republic of Korea.

(b) Prohibition. In accordance with section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 and section 817 of the NDAA for FY 2023, the Contractor shall not

(1) Provide or use an unmanned aircraft system (UAS), or any related services or equipment, that

(i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;

(2) Provide or use a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or

(3) On or after October 1, 2024, be an entity that operates equipment, as determined by the Secretary of Defense, from

(i) Da-Jiang Innovations, or any subsidiary or affiliate of Da-Jiang Innovations;

(ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce (<https://www.trade.gov/consolidated-screening-list>); or

(iii) Any entity that produces or provides unmanned aircraft systems and

(A) Is domiciled in a covered foreign country; or

(B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts or other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(End of clause)